

A BILL

To provide that a stay of execution entered by a court of the United States in a capital case shall not be vacated or circumvented by the Supreme Court during a limited period, and for other purposes.

SECTION 1. SHORT TITLE.

This Act may be cited as the “Capital Stay Integrity Act.”

SECTION 2. LIMITATION ON SUPREME COURT ACTION DURING CAPITAL STAYS.

(a) IN GENERAL. Chapter XXX of title 28, United States Code, is amended by adding at the end the following:

“§ XXX. Stays of execution in capital cases

(a) DEFINITIONS. In this section:

(1) CAPITAL CASE. The term ‘capital case’ means any proceeding in a court of the United States in which a person under sentence of death seeks relief from that sentence or from the manner, timing, or carrying out of its execution. This includes, without limitation, a proceeding under section 2241, 2254, or 2255 of this title or under section 1983 of title 42.

(2) COVERED STAY. The term ‘covered stay’ means any order of a district court or court of appeals, or of a judge thereof, that has the effect of preventing or postponing the execution of a sentence of death, however the order is denominated. This includes, without limitation, an administrative or temporary stay, a stay pending appeal, a stay under section 2251 of this title, a temporary restraining order, and an injunction pending appeal.

(3) PROTECTED PERIOD. The term ‘protected period’ means any day on which a covered stay is in effect, subject to the limits in subsection (c)

(b) LIMITATION. Notwithstanding any other provision of law, during a protected period neither the Supreme Court nor any Justice thereof shall, in a capital case in which a covered stay has been entered, or in any related or collateral proceeding:

- (1) vacate, dissolve, modify, narrow, or stay a covered stay;
- (2) grant a petition for a writ of certiorari filed by or on behalf of a State or the United States in which a judgment of the Court would have the practical effect of vacating, dissolving, modifying, narrowing, or staying a covered stay; or
- (3) issue any writ, order, or judgment that has the effect of permitting the sentence of death to be carried out before the protected period ends.

(c) AGGREGATION AND LIMITATIONS THEREOF. All covered stays relating to the same scheduled execution date shall be treated together. With respect to any scheduled execution date, the limitations in subsection (b) shall not apply on any day after covered stays relating to the same sentence of death have been in effect for a total of 42 days, or on

a day more than 42 days after the entry of the first covered stay relating to a given scheduled execution date.

(d) PETITIONS NOT FORFEITED. A petition, application, or motion that is filed during a protected period, and that the Supreme Court may not act upon by reason of subsection (b), shall be deemed timely and may be acted upon after the protected period ends.

(e) PRESERVATION. Nothing in this section limits the authority of the Supreme Court or any Justice thereof:

- (1) to grant a stay of execution;
- (2) to extend a covered stay;
- (3) to act on a petition, application, or motion filed by or on behalf of the person under sentence of death that does not have the effect described in subsection (b)(3); or
- (4) to exercise original jurisdiction under section 2241 of this title.

SECTION 3. SEVERABILITY.

If any provision of this Act, or its application to any person or circumstance, is held invalid, the remainder of this Act and its application to other persons or circumstances shall not be affected.

SECTION 4. EFFECTIVE DATE.

This Act shall take effect on the date of enactment and shall apply to any covered stay in effect on or entered after that date.